

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2020-4558, 2020-4559, 2020-4989, & 2020-4990

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE AS A PROFESSIONAL COUNSELOR IN THE STATE OF COLORADO AND THE REGISTRATION TO PRACTICE AS A PROFESSIONAL COUNSELOR CANDIDATE IN THE STATE OF COLORADO OF JEFFREY FAY, LICENSE NO. LPC 15983, REGISTRATION NO. LPCC 15973,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Jeffrey Fay ("Respondent"), as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").

2. Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado on January 13, 2020, having been issued license number LPC 15983, and is currently so licensed. Respondent was registered to practice as a professional counselor candidate ("LPCC") in the State of Colorado on February 27, 2018, having been issued registration number LPCC 15973, and is currently so registered.

3. This Order is a full and final resolution of all matters raised in case numbers 2020-4558, 2020-4559, 2020-4989, and 2020-4990. This Order resolves all matters between the Board and Respondent, as of the effective date of this Order.

4. Respondent denies the following allegations, but acknowledges that if the Board were to prove the allegations at hearing, they would constitute a violation of the Mental Health Practice Act, and would subject Respondent to discipline. The Board's allegations are as follows:

a. Respondent failed to maintain boundaries based on involvement in dual relationships with two (2) clients.

5. Although Respondent disputes the allegations in paragraph 4 above, if the allegations were proven by the Board at hearing, Respondent would have violated section 12-245-224(1)(g)(I) and (i) C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(g)(l) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline;

(i) Has maintained relationships with clients that are likely to impair the person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives.

PERMANENT RELINQUISHMENT

6. Respondent hereby permanently relinquishes his license and the right to practice as a professional counselor in the State of Colorado and his registration and the right to practice as a professional counselor candidate in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept said relinquishments. Such relinquishments shall have the same force and effect as revocations ordered by the Board, including the provisions of section 12-20-404(3), C.R.S. Respondent agrees not to reapply for licensure as a LPC or registration as a LPCC in the State of Colorado at any time in the future.

7. Following relinquishment of his license and registration, Respondent shall not perform any act requiring a license or registration to practice.

8. Respondent also agrees not to register as a psychotherapist in the State of Colorado nor will Respondent perform any act constituting psychotherapy as defined under section 12-245-202(14), C.R.S.

TERMS AND CONDITIONS

9. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

10. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

11. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

12. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, 12-245-214, 12-245-226, and 24-4-104(9), C.R.S.

13. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

14. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

15. This Order shall be admissible as evidence at any hearing held before the Board.

16. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

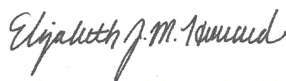
RESPONDENT

DocuSigned by:

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JEFFREY FAY
LICENSE No. LPC 15983
REGISTRATION No. LPCC 15973

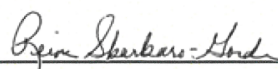
**APPROVED AS TO FORM
FOR RESPONDENT**



ELIZABETH HOWARD
Hershey Decker Drake

AGREED TO AND ORDERED BY:

**STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**


REINA SBARBARO-GORDON
Program Director

Effective this 26 day of March,
2021.